



Atomic Energy Authority (Special Constables) Act 1976

1976 CHAPTER 23

An Act to extend the powers relating to firearms of special constables appointed on the nomination of the United Kingdom Atomic Energy Authority; to extend the property in respect of which, and the places where, they may exercise those and their other powers; to make certain minor amendments about their powers; and for connected purposes. [10th June 1976]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) For the purposes of—

- (a) section 54 of the Firearms Act 1968 (application to Crown servants and treating the police as being in the service of Her Majesty), and
- (b) any rule of law whereby any provision of that Act does not bind the Crown,

Extension of
powers of
special
constables
as regards
firearms.
1968 c. 27.

an Authority constable shall be deemed to be a person in the service of Her Majesty.

(2) In the application by virtue of subsection (1) above of subsection (2) (a) of the said section 54 (acquisition by persons in such service of firearms for the public service without certificate) the reference to the public service shall be deemed to be a reference to use by any Authority constable in exercising his functions as such.

Extension of
property in
respect of
which special
constables may
exercise
their powers.
1965 c. 57.
1971 c. 11.
1923 c. 11.

2.—(1) In Schedule 1 to the Nuclear Installations Act 1965 (which is set out in the Schedule to the Atomic Energy Authority Act 1971) the following sub-paragraph shall be added at the end of paragraph 4 (which extends section 3 of the Special Constables Act 1923 so as to provide for the appointment of persons nominated by the Authority to be special constables in and within 15 miles of premises under the control of specified bodies corporate)—

“(3) For the purposes of section 2 of the Metropolitan Police Act 1860 (which limits the use of the powers of special constables to property of the Crown in certain circumstances) any property of the specified body corporate shall be deemed to be property of the Crown; and in this sub-paragraph property of the specified body corporate includes property which (though not owned by them) is in their possession or under their control and property which has been unlawfully removed from their possession or control”.

(2) Accordingly, in section 19(1) of the Atomic Energy Authority Act 1971 (application to designated companies of security provisions set out in the Schedule to that Act) after the words “set out in the Schedule to this Act” there shall be inserted the words “and as amended by section 2(1) of the Atomic Energy Authority (Special Constables) Act 1976”.

1954 c. 32.

(3) In Schedule 3 to the Atomic Energy Authority Act 1954, after the words “For the purposes of section two of the Metropolitan Police Act, 1860, any property of the Authority shall be deemed to be property of the Crown” there shall be added the words “; and in this paragraph property of the Authority includes property which (though not owned by them) is in their possession or under their control and property which has been unlawfully removed from their possession or control.”

Extension of
places where
special
constables may
exercise
their powers.

3.—(1) An Authority constable may exercise the powers and privileges, and shall be liable to the duties and responsibilities, of such a constable in any place where it appears to him expedient to go—

- (a) in order to safeguard any nuclear matter which is being carried or is being stored incidentally to its carriage before its delivery at its final destination and which is owned by the Crown or is owned by, or (though not so owned) is in the possession or under the control of, the Authority, a specified body corporate or a designated company;
- (b) in order to pursue, arrest, place in the custody of the police, or take to the limits within which the constable was appointed to act as an Authority constable, a

person who the constable reasonably believes has unlawfully removed or attempted to remove from the possession or control of the Crown, the Authority, a specified body corporate or a designated company any nuclear matter being safeguarded by the constable.

(2) An Authority constable acting in pursuance of paragraph (a) or (b) of subsection (1) above may not exercise his powers and privileges as such a constable in respect of any property other than such nuclear matter as is mentioned in the paragraph concerned.

(3) In this section "nuclear matter" means—

(a) any fissile material in the form of uranium metal, alloy or chemical compound, or of plutonium metal, alloy or chemical compound, and any other fissile material which may be prescribed; and

(b) any radioactive material produced in, or made radioactive by exposure to the radiation incidental to, the process of producing or utilising any such fissile material as aforesaid.

(4) In subsection (3)(a) above "prescribed" means prescribed by regulations made by the Secretary of State; and any such regulations shall be made by statutory instrument and be subject to annulment in pursuance of a resolution of either House of Parliament.

4.—(1) This Act may be cited as the Atomic Energy Authority (Special Constables) Act 1976. Citation,
interpretation,
minor amend-
ments and
extent.

(2) In this Act—

"Authority" means the United Kingdom Atomic Energy Authority;

"Authority constable" means a person appointed under section 3 of the Special Constables Act 1923 to be a special constable on the nomination of the Authority; 1923 c. 11.

"specified body corporate" means a body corporate specified in an order made under section 2(1B) of the Nuclear Installations Act 1965 (under which special provisions apply in relation to such a body which has a permit to undertake certain operations involving irradiated matter or uranium); and 1965 c. 57.

"designated company" means a company designated under section 19 of the Atomic Energy Authority Act 1971 (under which certain of those special provisions apply in relation to a company so designated as they apply in relation to a specified body corporate). 1971 c. 11.

(3) Except in so far as the context otherwise requires, a reference in this Act to any other enactment is a reference to

it as amended, and includes a reference to it as extended or applied, by or under any other enactment, including one contained in this Act.

1860 c. 135.

(4) In the application of the proviso to section 2 of the Metropolitan Police Act 1860 (restriction of powers of constables when outside certain yards etc.) to the powers and privileges of Authority constables, for the words from "yards" to "service" there shall be substituted the words "premises (but within the limits) within which they were appointed to act as constables" and the words from "or of persons" to "discipline" shall be omitted.

(5) This Act does not extend to Northern Ireland.